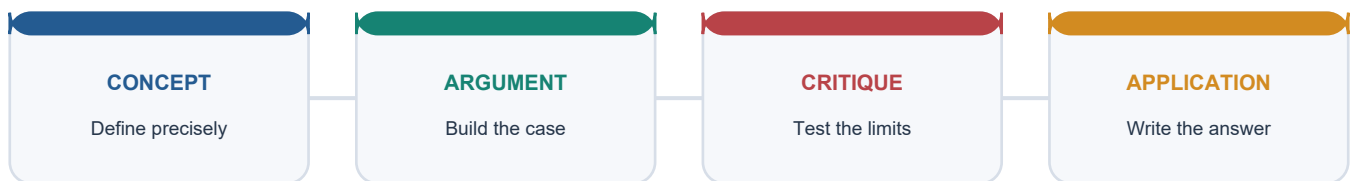


COMPLETE LEARNING SESSION

State Legislature - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

State Legislature - Solved Practice Workbook

Exactly 32 original MCQs precede the audited PYQs. The answer key is ABCD repeated eight times. Every option has a question-specific explanation and every MCQ has a distinct examiner trap.

BASIC MCQS / REMEDIATION

Exactly 32 original MCQs - answer key ABCD x 8

MCQ 1. State bicameralism

Which statement is correct?

A. Every State has an Assembly, while only specified States have a Council. B. Parliament alone may initiate a Council without State action. C. The Governor is outside the State legislature. D. Every State must have two Houses.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "Every State has an Assembly, while only specified States have a Council." The controlling rule is: Article 168 makes the Assembly universal, while a Council exists only in the constitutionally specified bicameral design.
- **B:** Incorrect. Option B states "Parliament alone may initiate a Council without State action." The controlling rule is: Article 168 makes the Assembly universal, while a Council exists only in the constitutionally specified bicameral design.
- **C:** Incorrect. Option C states "The Governor is outside the State legislature." The controlling rule is: Article 168 makes the Assembly universal, while a Council exists only in the constitutionally specified bicameral design.
- **D:** Incorrect. Option D states "Every State must have two Houses." The controlling rule is: Article 168 makes the Assembly universal, while a Council exists only in the constitutionally specified bicameral design.

Examiner trap: Governor-plus-House composition does not make the Governor a House member.

MCQ 2. Article 169

Parliament may create a Council after:

A. a simple-majority Council resolution. B. an Assembly special-majority resolution. C. presidential reference to the Supreme Court. D. ratification by half the States.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "a simple-majority Council resolution." The controlling rule is: Article 169 requires the Assembly's total-membership majority plus two-thirds present and voting before Parliament may legislate.
- **B:** Correct. Option B states "an Assembly special-majority resolution." The controlling rule is: Article 169 requires the Assembly's total-membership majority plus two-thirds present and voting before Parliament may legislate.
- **C:** Incorrect. Option C states "presidential reference to the Supreme Court." The controlling rule is: Article 169 requires the Assembly's total-membership majority plus two-thirds present and voting before Parliament may legislate.
- **D:** Incorrect. Option D states "ratification by half the States." The controlling rule is: Article 169 requires the Assembly's total-membership majority plus two-thirds present and voting before Parliament may legislate.

Examiner trap: The Article 169 special majority belongs to the Assembly resolution, not Parliament's Act.

MCQ 3. Parliamentary majority

The Article 169 law is passed by Parliament:

A. by two-thirds of total membership. B. only in a joint sitting. C. as an ordinary law by simple majority. D. only after State ratification.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "by two-thirds of total membership." The controlling rule is: Parliament's Article 169 law follows ordinary legislation and is expressly not treated as an Article 368 amendment.
- **B:** Incorrect. Option B states "only in a joint sitting." The controlling rule is: Parliament's Article 169 law follows ordinary legislation and is expressly not treated as an Article 368 amendment.
- **C:** Correct. Option C states "as an ordinary law by simple majority." The controlling rule is: Parliament's Article 169 law follows ordinary legislation and is expressly not treated as an Article 368 amendment.
- **D:** Incorrect. Option D states "only after State ratification." The controlling rule is: Parliament's Article 169 law follows ordinary legislation and is expressly not treated as an Article 368 amendment.

Examiner trap: An Article 169 law may alter constitutional text incidentally without becoming an Article 368 amendment.

MCQ 4. Council strength

The Council's strength is ordinarily:

A. at least 60. B. fixed by the Governor. C. exactly half the Assembly. D. not more than one-third of Assembly strength and not below 40.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "at least 60." The controlling rule is: Article 171 caps a Council at one-third of Assembly strength and sets an ordinary minimum of forty.
- **B:** Incorrect. Option B states "fixed by the Governor." The controlling rule is: Article 171 caps a Council at one-third of Assembly strength and sets an ordinary minimum of forty.
- **C:** Incorrect. Option C states "exactly half the Assembly." The controlling rule is: Article 171 caps a Council at one-third of Assembly strength and sets an ordinary minimum of forty.
- **D:** Correct. Option D states "not more than one-third of Assembly strength and not below 40." The controlling rule is: Article 171 caps a Council at one-third of Assembly strength and sets an ordinary minimum of forty.

Examiner trap: Do not substitute a sixty-member minimum for Article 171's forty-member floor.

MCQ 5. Local bodies

Approximately what share of a Council is elected by local authorities?

A. One-third. B. One-sixth. C. One-twelfth. D. Two-thirds.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "One-third." The controlling rule is: Article 171 allocates approximately one-third of Council seats to specified local authorities.
- **B:** Incorrect. Option B states "One-sixth." The controlling rule is: Article 171 allocates approximately one-third of Council seats to specified local authorities.
- **C:** Incorrect. Option C states "One-twelfth." The controlling rule is: Article 171 allocates approximately one-third of Council seats to specified local authorities.
- **D:** Incorrect. Option D states "Two-thirds." The controlling rule is: Article 171 allocates approximately one-third of Council seats to specified local authorities.

Examiner trap: Local-authority members are not elected by the whole State electorate.

MCQ 6. Graduates

Graduates elect:

A. one-third. B. one-twelfth. C. half. D. one-sixth.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "one-third." The controlling rule is: The graduate and teacher electoral streams each account for approximately one-twelfth under Article 171.
- **B:** Correct. Option B states "one-twelfth." The controlling rule is: The graduate and teacher electoral streams each account for approximately one-twelfth under Article 171.
- **C:** Incorrect. Option C states "half." The controlling rule is: The graduate and teacher electoral streams each account for approximately one-twelfth under Article 171.
- **D:** Incorrect. Option D states "one-sixth." The controlling rule is: The graduate and teacher electoral streams each account for approximately one-twelfth under Article 171.

Examiner trap: Graduate and teacher constituencies are separate one-twelfth streams.

MCQ 7. Governor nominations

The Governor nominates:

A. all teacher members. B. one-third of the Assembly. C. one-sixth of the Council. D. one-twelfth of the Council.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "all teacher members." The controlling rule is: The Governor nominates the remainder, approximately one-sixth, from the five constitutionally named fields.
- **B:** Incorrect. Option B states "one-third of the Assembly." The controlling rule is: The Governor nominates the remainder, approximately one-sixth, from the five constitutionally named fields.
- **C:** Correct. Option C states "one-sixth of the Council." The controlling rule is: The Governor nominates the remainder, approximately one-sixth, from the five constitutionally named fields.
- **D:** Incorrect. Option D states "one-twelfth of the Council." The controlling rule is: The Governor nominates the remainder, approximately one-sixth, from the five constitutionally named fields.

Examiner trap: The nomination fields are literature, science, art, co-operative movement and social service; 'education' is not the text.

MCQ 8. Council duration

Which is correct?

A. Half retires every three years. B. Council dissolves with the Assembly. C. Council has a five-year collective term. D. Council is permanent and one-third retires every two years.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "Half retires every three years." The controlling rule is: A Council is continuing; roughly one-third retires every second year and members ordinarily serve six years.
- **B:** Incorrect. Option B states "Council dissolves with the Assembly." The controlling rule is: A Council is continuing; roughly one-third retires every second year and members ordinarily serve six years.
- **C:** Incorrect. Option C states "Council has a five-year collective term." The controlling rule is: A Council is continuing; roughly one-third retires every second year and members ordinarily serve six years.
- **D:** Correct. Option D states "Council is permanent and one-third retires every two years." The controlling rule is: A Council is continuing; roughly one-third retires every second year and members ordinarily serve six years.

Examiner trap: Permanent House does not mean permanent membership.

MCQ 9. Minimum age

Minimum age for Assembly membership is:

A. 25. B. 30. C. 35. D. 21.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "25." The controlling rule is: Article 173 sets the minimum age at twenty-five for an Assembly seat and thirty for a Council seat.
- **B:** Incorrect. Option B states "30." The controlling rule is: Article 173 sets the minimum age at twenty-five for an Assembly seat and thirty for a Council seat.
- **C:** Incorrect. Option C states "35." The controlling rule is: Article 173 sets the minimum age at twenty-five for an Assembly seat and thirty for a Council seat.
- **D:** Incorrect. Option D states "21." The controlling rule is: Article 173 sets the minimum age at twenty-five for an Assembly seat and thirty for a Council seat.

Examiner trap: Assembly and Council candidacy ages are not identical.

MCQ 10. Assembly term

The normal Assembly term is:

A. permanent. B. five years unless sooner dissolved. C. six years. D. four years.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "permanent." The controlling rule is: Article 172 gives an Assembly a normal five-year life from its first meeting unless sooner dissolved.
- **B:** Correct. Option B states "five years unless sooner dissolved." The controlling rule is: Article 172 gives an Assembly a normal five-year life from its first meeting unless sooner dissolved.
- **C:** Incorrect. Option C states "six years." The controlling rule is: Article 172 gives an Assembly a normal five-year life from its first meeting unless sooner dissolved.
- **D:** Incorrect. Option D states "four years." The controlling rule is: Article 172 gives an Assembly a normal five-year life from its first meeting unless sooner dissolved.

Examiner trap: The five-year Assembly period runs from its first meeting and remains subject to earlier dissolution.

MCQ 11. Quorum

State House quorum is:

A. one-fifth. B. one-tenth, with no minimum. C. until the State Legislature otherwise provides by law, ten members or one-tenth, whichever is greater. D. exactly ten in every House.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "one-fifth." The controlling rule is: Article 189's default is ten members or one-tenth of total membership, whichever is greater, until State law provides otherwise.
- **B:** Incorrect. Option B states "one-tenth, with no minimum." The controlling rule is: Article 189's default is ten members or one-tenth of total membership, whichever is greater, until State law provides otherwise.
- **C:** Correct. Option C states "until the State Legislature otherwise provides by law, ten members or one-tenth, whichever is greater." The controlling rule is: Article 189's default is ten members or one-tenth of total membership, whichever is greater, until State law provides otherwise.
- **D:** Incorrect. Option D states "exactly ten in every House." The controlling rule is: Article 189's default is ten members or one-tenth of total membership, whichever is greater, until State law provides otherwise.

Examiner trap: The quorum rule includes both the ten-member floor and the 'until otherwise provided by law' clause.

MCQ 12. Casting vote

The presiding officer:

A. cannot vote in a tie. B. has two ordinary votes. C. always votes first. D. ordinarily has no first vote but has a casting vote on equality.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "cannot vote in a tie." The controlling rule is: Under Article 189 the presiding officer ordinarily has no first vote but has a casting vote on equality.
- **B:** Incorrect. Option B states "has two ordinary votes." The controlling rule is: Under Article 189 the presiding officer ordinarily has no first vote but has a casting vote on equality.
- **C:** Incorrect. Option C states "always votes first." The controlling rule is: Under Article 189 the presiding officer ordinarily has no first vote but has a casting vote on equality.
- **D:** Correct. Option D states "ordinarily has no first vote but has a casting vote on equality." The controlling rule is: Under Article 189 the presiding officer ordinarily has no first vote but has a casting vote on equality.

Examiner trap: A casting vote is triggered by equality; it is not a second ordinary vote.

MCQ 13. Speaker after dissolution

On Assembly dissolution, the Speaker:

A. continues until immediately before the first meeting of the new Assembly. B. becomes Governor. C. vacates immediately. D. continues for six months regardless of the new House.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "continues until immediately before the first meeting of the new Assembly." The controlling rule is: Article 179 continues the Speaker until immediately before the first meeting of the new Assembly.
- **B:** Incorrect. Option B states "becomes Governor." The controlling rule is: Article 179 continues the Speaker until immediately before the first meeting of the new Assembly.
- **C:** Incorrect. Option C states "vacates immediately." The controlling rule is: Article 179 continues the Speaker until immediately before the first meeting of the new Assembly.
- **D:** Incorrect. Option D states "continues for six months regardless of the new House." The controlling rule is: Article 179 continues the Speaker until immediately before the first meeting of the new Assembly.

Examiner trap: Assembly dissolution does not instantly vacate the Speaker.

MCQ 14. Speaker removal

Removal requires:

A. Governor's order. B. majority of all then members after 14 days' notice. C. simple majority of those present without notice. D. two-thirds of total membership.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "Governor's order." The controlling rule is: Speaker removal requires fourteen days' notice and a majority of all the then members of the Assembly.
- **B:** Correct. Option B states "majority of all then members after 14 days' notice." The controlling rule is: Speaker removal requires fourteen days' notice and a majority of all the then members of the Assembly.
- **C:** Incorrect. Option C states "simple majority of those present without notice." The controlling rule is: Speaker removal requires fourteen days' notice and a majority of all the then members of the Assembly.
- **D:** Incorrect. Option D states "two-thirds of total membership." The controlling rule is: Speaker removal requires fourteen days' notice and a majority of all the then members of the Assembly.

Examiner trap: Removal uses an effective majority of all then members, not two-thirds of total membership.

MCQ 15. Defection adjudicator

Tenth Schedule State-member disqualification is initially decided by:

A. High Court. B. Governor on ECI advice. C. Speaker or Chairman. D. Chief Minister.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "High Court." The controlling rule is: Tenth Schedule paragraph 6 assigns the initial decision to the Speaker or Chairman, subject to judicial review.
- **B:** Incorrect. Option B states "Governor on ECI advice." The controlling rule is: Tenth Schedule paragraph 6 assigns the initial decision to the Speaker or Chairman, subject to judicial review.
- **C:** Correct. Option C states "Speaker or Chairman." The controlling rule is: Tenth Schedule paragraph 6 assigns the initial decision to the Speaker or Chairman, subject to judicial review.
- **D:** Incorrect. Option D states "Chief Minister." The controlling rule is: Tenth Schedule paragraph 6 assigns the initial decision to the Speaker or Chairman, subject to judicial review.

Examiner trap: Article 192 and Tenth Schedule paragraph 6 use different decision-makers.

MCQ 16. Article 192

For a non-defection Article 191 disqualification question, the Governor:

A. acts personally without advice from any institution. B. sends it to Parliament. C. refers it to the Speaker. D. obtains and acts according to the Election Commission's opinion.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "acts personally without advice from any institution." The controlling rule is: Article 192 requires the Governor to obtain and act according to the Election Commission's opinion for Article 191(1) questions.
- **B:** Incorrect. Option B states "sends it to Parliament." The controlling rule is: Article 192 requires the Governor to obtain and act according to the Election Commission's opinion for Article 191(1) questions.
- **C:** Incorrect. Option C states "refers it to the Speaker." The controlling rule is: Article 192 requires the Governor to obtain and act according to the Election Commission's opinion for Article 191(1) questions.
- **D:** Correct. Option D states "obtains and acts according to the Election Commission's opinion." The controlling rule is: Article 192 requires the Governor to obtain and act according to the Election Commission's opinion for Article 191(1) questions.

Examiner trap: The Governor must follow the ECI opinion under Article 192.

MCQ 17. Ordinary Bill delay

Maximum Council delay across Article 197 stages is approximately:

A. four months. B. six months. C. one year. D. fourteen days.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "four months." The controlling rule is: Article 197 permits a maximum three-month first delay and one-month second delay by the Council.
- **B:** Incorrect. Option B states "six months." The controlling rule is: Article 197 permits a maximum three-month first delay and one-month second delay by the Council.
- **C:** Incorrect. Option C states "one year." The controlling rule is: Article 197 permits a maximum three-month first delay and one-month second delay by the Council.
- **D:** Incorrect. Option D states "fourteen days." The controlling rule is: Article 197 permits a maximum three-month first delay and one-month second delay by the Council.

Examiner trap: Three months plus one month is delay, not an absolute veto.

MCQ 18. Joint sitting

For disagreement between State Houses:

A. President chairs a joint sitting. B. no constitutional joint sitting exists. C. Governor always calls a joint sitting. D. Supreme Court resolves amendments.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "President chairs a joint sitting." The controlling rule is: The Constitution provides no joint sitting for disagreement between the two State Houses.
- **B:** Correct. Option B states "no constitutional joint sitting exists." The controlling rule is: The Constitution provides no joint sitting for disagreement between the two State Houses.
- **C:** Incorrect. Option C states "Governor always calls a joint sitting." The controlling rule is: The Constitution provides no joint sitting for disagreement between the two State Houses.
- **D:** Incorrect. Option D states "Supreme Court resolves amendments." The controlling rule is: The Constitution provides no joint sitting for disagreement between the two State Houses.

Examiner trap: Article 108's joint sitting has no State-level mirror.

MCQ 19. Money Bill introduction

A State Money Bill may be introduced:

A. only in the Council. B. in either House. C. only in the Assembly. D. only in Parliament.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "only in the Council." The controlling rule is: A State Money Bill can be introduced only in the Legislative Assembly.
- **B:** Incorrect. Option B states "in either House." The controlling rule is: A State Money Bill can be introduced only in the Legislative Assembly.
- **C:** Correct. Option C states "only in the Assembly." The controlling rule is: A State Money Bill can be introduced only in the Legislative Assembly.
- **D:** Incorrect. Option D states "only in Parliament." The controlling rule is: A State Money Bill can be introduced only in the Legislative Assembly.

Examiner trap: A Money Bill cannot originate in the Council.

MCQ 20. Council on Money Bill

The Council:

A. can amend conclusively. B. can reject permanently. C. has three months. D. may recommend within 14 days.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "can amend conclusively." The controlling rule is: The Council has fourteen days to make recommendations on a Money Bill; the Assembly decides whether to accept them.
- **B:** Incorrect. Option B states "can reject permanently." The controlling rule is: The Council has fourteen days to make recommendations on a Money Bill; the Assembly decides whether to accept them.
- **C:** Incorrect. Option C states "has three months." The controlling rule is: The Council has fourteen days to make recommendations on a Money Bill; the Assembly decides whether to accept them.
- **D:** Correct. Option D states "may recommend within 14 days." The controlling rule is: The Council has fourteen days to make recommendations on a Money Bill; the Assembly decides whether to accept them.

Examiner trap: Council recommendations on a Money Bill never bind the Assembly.

MCQ 21. Money Bill certificate

Who certifies a State Money Bill?

A. Assembly Speaker. B. Advocate General. C. Governor. D. Council Chairman.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "Assembly Speaker." The controlling rule is: Article 199 assigns final constitutional certification of a State Money Bill to the Assembly Speaker.
- **B:** Incorrect. Option B states "Advocate General." The controlling rule is: Article 199 assigns final constitutional certification of a State Money Bill to the Assembly Speaker.
- **C:** Incorrect. Option C states "Governor." The controlling rule is: Article 199 assigns final constitutional certification of a State Money Bill to the Assembly Speaker.
- **D:** Incorrect. Option D states "Council Chairman." The controlling rule is: Article 199 assigns final constitutional certification of a State Money Bill to the Assembly Speaker.

Examiner trap: Speaker certification and gubernatorial recommendation are different steps.

MCQ 22. Confidence

The State Council of Ministers is collectively responsible to:

A. the Governor personally. B. the Legislative Assembly. C. the Legislative Council. D. both Houses equally.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "the Governor personally." The controlling rule is: Article 164(2) makes the State Council of Ministers collectively responsible to the Legislative Assembly.
- **B:** Correct. Option B states "the Legislative Assembly." The controlling rule is: Article 164(2) makes the State Council of Ministers collectively responsible to the Legislative Assembly.
- **C:** Incorrect. Option C states "the Legislative Council." The controlling rule is: Article 164(2) makes the State Council of Ministers collectively responsible to the Legislative Assembly.
- **D:** Incorrect. Option D states "both Houses equally." The controlling rule is: Article 164(2) makes the State Council of Ministers collectively responsible to the Legislative Assembly.

Examiner trap: Council debate cannot replace Assembly confidence.

MCQ 23. Demands for grants

Demands for grants are voted by:

A. the Council alone. B. the Governor. C. the Assembly alone. D. both Houses.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "the Council alone." The controlling rule is: Article 203 submits demands for grants only to the vote of the Legislative Assembly.
- **B:** Incorrect. Option B states "the Governor." The controlling rule is: Article 203 submits demands for grants only to the vote of the Legislative Assembly.
- **C:** Correct. Option C states "the Assembly alone." The controlling rule is: Article 203 submits demands for grants only to the vote of the Legislative Assembly.
- **D:** Incorrect. Option D states "both Houses." The controlling rule is: Article 203 submits demands for grants only to the vote of the Legislative Assembly.

Examiner trap: The Council may discuss finance but cannot vote demands for grants.

MCQ 24. Charged expenditure

Charged expenditure:

A. requires a joint sitting. B. is neither discussed nor voted. C. is voted only by Council. D. may be discussed but is not voted.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "requires a joint sitting." The controlling rule is: Charged expenditure may be discussed but is not submitted to vote under Article 203.
- **B:** Incorrect. Option B states "is neither discussed nor voted." The controlling rule is: Charged expenditure may be discussed but is not submitted to vote under Article 203.
- **C:** Incorrect. Option C states "is voted only by Council." The controlling rule is: Charged expenditure may be discussed but is not submitted to vote under Article 203.
- **D:** Correct. Option D states "may be discussed but is not voted." The controlling rule is: Charged expenditure may be discussed but is not submitted to vote under Article 203.

Examiner trap: Charged expenditure is discussable even though it is not voted.

MCQ 25. Article 200 return

The Governor may return for reconsideration:

A. a non-Money Bill. B. a demand for grant. C. a constitutional amendment Bill. D. a Money Bill only.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "a non-Money Bill." The controlling rule is: The first proviso to Article 200 permits return only of a non-Money Bill for reconsideration.
- **B:** Incorrect. Option B states "a demand for grant." The controlling rule is: The first proviso to Article 200 permits return only of a non-Money Bill for reconsideration.
- **C:** Incorrect. Option C states "a constitutional amendment Bill." The controlling rule is: The first proviso to Article 200 permits return only of a non-Money Bill for reconsideration.
- **D:** Incorrect. Option D states "a Money Bill only." The controlling rule is: The first proviso to Article 200 permits return only of a non-Money Bill for reconsideration.

Examiner trap: A Money Bill cannot be returned under Article 200's first proviso.

MCQ 26. Mandatory reservation

Reservation for the President is mandatory where a Bill:

A. changes House rules. B. endangers the constitutional position of the High Court by derogating from its powers. C. alters a municipal boundary. D. creates a Council.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "changes House rules." The controlling rule is: The second proviso to Article 200 mandates reservation where derogation from High Court powers endangers its constitutional position.
- **B:** Correct. Option B states "endangers the constitutional position of the High Court by derogating from its powers." The controlling rule is: The second proviso to Article 200 mandates reservation where derogation from High Court powers endangers its constitutional position.
- **C:** Incorrect. Option C states "alters a municipal boundary." The controlling rule is: The second proviso to Article 200 mandates reservation where derogation from High Court powers endangers its constitutional position.
- **D:** Incorrect. Option D states "creates a Council." The controlling rule is: The second proviso to Article 200 mandates reservation where derogation from High Court powers endangers its constitutional position.

Examiner trap: The High Court-protection proviso is mandatory, unlike a general policy disagreement.

MCQ 27. Article 201

After a reserved non-Money Bill is returned and repassed:

A. Governor must enact it without presentation. B. President must assent. C. presidential assent is not constitutionally compelled. D. it becomes law automatically.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "Governor must enact it without presentation." The controlling rule is: Under Article 201, repassage after a presidentially directed return does not constitutionally compel presidential assent.
- **B:** Incorrect. Option B states "President must assent." The controlling rule is: Under Article 201, repassage after a presidentially directed return does not constitutionally compel presidential assent.
- **C:** Correct. Option C states "presidential assent is not constitutionally compelled." The controlling rule is: Under Article 201, repassage after a presidentially directed return does not constitutionally compel presidential assent.
- **D:** Incorrect. Option D states "it becomes law automatically." The controlling rule is: Under Article 201, repassage after a presidentially directed return does not constitutionally compel presidential assent.

Examiner trap: Article 201 contains no repassage command equivalent to Article 200's text.

MCQ 28. Assent status

The November 2025 advisory opinion supports:

A. rigid judicial timelines in every case. B. absolute non-justiciability of inaction. C. automatic deemed assent after one month. D. limited review of prolonged unexplained inaction without deemed assent.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "rigid judicial timelines in every case." The controlling rule is: The 2025 Article 143 opinion rejects rigid judicial timelines and deemed assent but preserves limited mandamus for glaring prolonged inaction.
- **B:** Incorrect. Option B states "absolute non-justiciability of inaction." The controlling rule is: The 2025 Article 143 opinion rejects rigid judicial timelines and deemed assent but preserves limited mandamus for glaring prolonged inaction.
- **C:** Incorrect. Option C states "automatic deemed assent after one month." The controlling rule is: The 2025 Article 143 opinion rejects rigid judicial timelines and deemed assent but preserves limited mandamus for glaring prolonged inaction.
- **D:** Correct. Option D states "limited review of prolonged unexplained inaction without deemed assent." The controlling rule is: The 2025 Article 143 opinion rejects rigid judicial timelines and deemed assent but preserves limited mandamus for glaring prolonged inaction.

Examiner trap: Limited mandamus to act is not judicial selection of assent, withholding or reservation.

MCQ 29. Privilege

Article 194 primarily protects:

A. member speech and votes in the House/committees. B. every private act of a legislator. C. the Governor as a House member. D. all party communications.

Answer: A.

Option explanations:

- **A:** Correct. Option A states "member speech and votes in the House/committees." The controlling rule is: Article 194 protects speech, votes and legislative functions; it does not create general personal criminal immunity.
- **B:** Incorrect. Option B states "every private act of a legislator." The controlling rule is: Article 194 protects speech, votes and legislative functions; it does not create general personal criminal immunity.
- **C:** Incorrect. Option C states "the Governor as a House member." The controlling rule is: Article 194 protects speech, votes and legislative functions; it does not create general personal criminal immunity.
- **D:** Incorrect. Option D states "all party communications." The controlling rule is: Article 194 protects speech, votes and legislative functions; it does not create general personal criminal immunity.

Examiner trap: Sita Soren removes bribery from the privilege shield.

MCQ 30. Article 212

Article 212 bars courts from questioning proceedings merely for:

A. lack of legislative competence. B. procedural irregularity. C. mala fides. D. violation of Fundamental Rights.

Answer: B.

Option explanations:

- **A:** Incorrect. Option A states "lack of legislative competence." The controlling rule is: Article 212 bars challenge merely for procedural irregularity, not review of substantive constitutional illegality.
- **B:** Correct. Option B states "procedural irregularity." The controlling rule is: Article 212 bars challenge merely for procedural irregularity, not review of substantive constitutional illegality.
- **C:** Incorrect. Option C states "mala fides." The controlling rule is: Article 212 bars challenge merely for procedural irregularity, not review of substantive constitutional illegality.
- **D:** Incorrect. Option D states "violation of Fundamental Rights." The controlling rule is: Article 212 bars challenge merely for procedural irregularity, not review of substantive constitutional illegality.

Examiner trap: Procedural irregularity and substantive illegality are not synonyms.

MCQ 31. Women's reservation

The 106th Amendment reservation applies to:

A. Rajya Sabha and Councils. B. every nominated seat. C. Lok Sabha and State Legislative Assemblies, subject to activation conditions. D. Legislative Councils only.

Answer: C.

Option explanations:

- **A:** Incorrect. Option A states "Rajya Sabha and Councils." The controlling rule is: Article 332A covers State Legislative Assemblies, while Article 334A postpones operation until the census-publication and delimitation sequence.
- **B:** Incorrect. Option B states "every nominated seat." The controlling rule is: Article 332A covers State Legislative Assemblies, while Article 334A postpones operation until the census-publication and delimitation sequence.
- **C:** Correct. Option C states "Lok Sabha and State Legislative Assemblies, subject to activation conditions." The controlling rule is: Article 332A covers State Legislative Assemblies, while Article 334A postpones operation until the census-publication and delimitation sequence.
- **D:** Incorrect. Option D states "Legislative Councils only." The controlling rule is: Article 332A covers State Legislative Assemblies, while Article 334A postpones operation until the census-publication and delimitation sequence.

Examiner trap: Women's reservation does not extend to Legislative Councils and commencement is not electoral operation.

MCQ 32. Article 213 ordinance interface

Under Article 213, which statement is correct?

A. The Governor may promulgate an ordinance whenever one House adjourns for a day. B. A State ordinance survives until the legislature expressly repeals it. C. A State ordinance may amend the Constitution within that State. D. The power is recess-conditioned, competence-bound and subject to later legislative scrutiny.

Answer: D.

Option explanations:

- **A:** Incorrect. Option A states "The Governor may promulgate an ordinance whenever one House adjourns for a day." The controlling rule is: Article 213 is conditioned by legislative recess, immediate necessity, competence, laying and the six-week reassembly control.
- **B:** Incorrect. Option B states "A State ordinance survives until the legislature expressly repeals it." The controlling rule is: Article 213 is conditioned by legislative recess, immediate necessity, competence, laying and the six-week reassembly control.
- **C:** Incorrect. Option C states "A State ordinance may amend the Constitution within that State." The controlling rule is: Article 213 is conditioned by legislative recess, immediate necessity, competence, laying and the six-week reassembly control.
- **D:** Correct. Option D states "The power is recess-conditioned, competence-bound and subject to later legislative scrutiny." The controlling rule is: Article 213 is conditioned by legislative recess, immediate necessity, competence, laying and the six-week reassembly control.

Examiner trap: An ordinance is not a constitutional amendment, permanent Act or substitute for legislative sessions.

PYQS AND ANSWER PRACTICE

Audited Mains PYQs

PYQ-M1 - UPSC CSE Mains 2021, GS-II, Q14

Official paper wording: "Explain the constitutional provisions under which Legislative Councils are established. Review the working and current status of Legislative Councils with suitable illustrations." **15 marks | 250 words**

Model answer: Legislative Councils are optional second chambers. Article 168 permits bicameral State legislatures; Article 169 requires an Assembly resolution supported by a majority of total membership and two-thirds present and voting, after which Parliament may enact an ordinary law. Article 171 fixes mixed indirect composition: local authorities, graduates, teachers and MLAs elect five-sixths, while the Governor nominates the remainder from specified fields. The Council is continuing, with one-third retiring every two years.

Its working is deliberately subordinate. Under Article 197 it may delay an ordinary Bill for three months and, after Assembly repassage, one month; no joint sitting exists. Under Articles 198-199 it may only recommend changes to a Money Bill within fourteen days. It cannot vote grants or remove the ministry, which is responsible to the Assembly.

Councils can check haste, preserve continuity and represent local or expert voices. Yet occupational electorates, patronage, cost and weak committee capacity may make them duplicative. Their value is therefore State-specific: retain where independent scrutiny is demonstrable, reform electorates and nominations, and use Article 169 abolition where the chamber remains merely ornamental.

PYQ-M2 - UPSC CSE Mains 2023, GS-II, Q5

Official paper wording: "Discuss the role of Presiding Officers of state legislatures in maintaining order and impartiality in conducting legislative work and in facilitating best democratic practices." **10 marks | 150 words**

Model answer: Presiding officers are the procedural guardians of State legislatures. Articles 178-185 establish the Speaker, Deputy Speaker, Chairman and Deputy Chairman with removal safeguards. They maintain order, interpret House rules, admit questions and motions, recognise speakers and committees, and use a casting vote under Article 189. The Assembly Speaker also certifies Money Bills under Article 199 and the presiding officer decides Tenth Schedule petitions.

These powers shape debate, finance and even government survival. Continued party affiliation and strategic delay can therefore damage neutrality. *Kihoto Hollohan* makes defection decisions reviewable; *Keisham Meghachandra* stated an ordinarily three-month norm absent exceptional circumstances; *Subhash Desai* protected the political party's authority over the whip.

Impartiality requires reasoned rulings, equal speaking opportunities, timely decisions, stronger secretariats and reconsideration of the presiding officer's defection role. Convention matters, but institutional insulation makes neutrality credible.

Audited objective PYQs - official-key discipline

PYQ-P1 - UPSC Prelims 2018, GS-I, official paper

Consider the following statements:

1. The Speaker of the Legislative Assembly shall vacate his/her office if he/she ceases to be a member of the Assembly.
2. Whenever the Legislative Assembly is dissolved, the Speaker shall vacate his/her office immediately.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Doctrinal solution: Article 179 makes statement 1 correct and statement 2 incorrect: the Speaker continues until immediately before the first meeting of the new Assembly.

PYQ-P2 - UPSC Prelims 2019, GS-I, Q53

With reference to the Legislative Assembly of a State in India, consider the following statements:

1. The Governor makes a customary address to Members of the House at the commencement of the first session of the year.
2. When a State Legislature does not have a rule on a particular matter, it follows the Lok Sabha rule on that matter.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Doctrinal solution: Article 176 requires the special address at the first session each year; Article 208 lets a House make its own rules and does not automatically import Lok Sabha rules.

PYQ-P3 - UPSC Prelims 2025, GS-I, Q59, Set A

With reference to the Indian polity, consider the following statements:

1. The Governor of a State is not answerable to any court for the exercise and performance of the powers and duties of his/her office.
2. No criminal proceedings shall be instituted or continued against the Governor during his/her term of office.
3. Members of a State Legislature are not liable to any proceedings in any court in respect of anything said within the House.

Which of the statements given above are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Official Set-A answer: D.

Doctrinal solution: Article 361 supplies the first two personal immunities and Article 194(2) supplies the member speech immunity. The official locally held final Set-A key marks D.

Exactly six original Mains questions with model solutions

Original Q1 - 10 marks, answer in not more than 150 words

"A Legislative Council is a revising convenience, not a revising power." Examine.

Model answer (126 words): A Legislative Council gives a State Bill a second deliberative stage but cannot defeat the directly elected Assembly. Article 197 permits a first delay of up to three months and a second delay of one month after Assembly repassage; there is no State joint sitting. Articles 198-199 reduce its Money Bill role to recommendations within fourteen days. It cannot vote demands for grants or remove the ministry because Article 164(2) makes the Council of Ministers responsible only to the Assembly. These limits preserve democratic primacy while allowing continuity, expert participation and exposure of drafting defects. However, delay adds value only where membership and committee work produce independent scrutiny. Where the chamber merely reproduces party patronage, cost and duplication dominate. The Council is therefore a revising convenience whose justification must be demonstrated State by State.

Original Q2 - 10 marks, answer in not more than 150 words

Analyse the neutrality problem of the State Legislative Assembly Speaker.

Model answer (137 words): The Speaker protects orderly and equal deliberation, yet combines procedural authority with continuing party affiliation. Articles 178-181 secure the office; Article 189 gives a casting vote; Article 199 assigns Money Bill certification; and Tenth Schedule paragraph 6 makes the Speaker the initial defection adjudicator. These powers can determine agenda, finance and government survival. *Kihoto Hollohan* subjected defection decisions to judicial review, while *Keisham Meghachandra* stated that petitions should ordinarily be decided within three months absent exceptional circumstances. *Subhash Desai* held that the political party, not a legislature-party faction, appoints the authorised whip and leader. Judicial review corrects abuse after or around decision, but cannot supply daily impartiality. Reasoned rulings, protected debate time, professional secretariats and an independent defection tribunal deserve consideration. Neutrality should be institutionally supported rather than left entirely to personal convention.

Original Q3 - 15 marks, answer in not more than 250 words

Reconcile the 2023 Punjab Governor judgment, the 2025 Tamil Nadu judgment and the 2025 Article 143 opinion on Articles 200-201.

Model answer (195 words): Article 200 places a completed State Bill before the Governor, while Article 201 governs a Bill reserved for the President. The constitutional problem is how to prevent paralysis without replacing the named decision-maker.

In *State of Punjab v. Principal Secretary to the Governor* (2023), the Supreme Court rejected indefinite inaction and read withholding with the first-proviso return mechanism. In *State of Tamil Nadu v. Governor of Tamil Nadu* (8 April 2025), the Court invalidated the second-round reservation of repassed Bills, prescribed timelines and, on its facts, used Article 142 to deem assent to ten Bills.

The five-judge advisory opinion of 20 November 2025, 2025 INSC 1333, stated that Article 200 offers three options: assent; reserve; or withhold and return a non-Money Bill with comments. It held that courts cannot prescribe rigid general timelines, conduct pre-enactment merits review, substitute the constitutional decision under Article 142 or create deemed assent. Yet glaring, prolonged, unexplained and indefinite inaction remains open to limited mandamus requiring action within reasonable time.

The opinion is advisory, not an appellate order setting aside Tamil Nadu's inter partes relief. The current synthesis is therefore: no pocket veto, no judicially invented assent, and bounded review focused on inaction rather than merits.

Original Q4 - 15 marks, answer in not more than 250 words

Explain how Articles 202-207 establish Assembly primacy while retaining constitutional financial discipline.

Model answer (183 words): Articles 202-207 convert executive fiscal proposals into legislative authority. Article 202 requires the annual financial statement and separates charged from voted expenditure. Article 203 allows discussion of charged expenditure but submits demands for grants only to the Assembly, and only on the Governor's recommendation. Article 204 then requires appropriation before withdrawal from the Consolidated Fund. Articles 205-206 accommodate supplementary, additional, excess and exceptional needs without bypassing legislative authorisation.

Article 207 distinguishes financial categories. A Bill containing Article 199(1)(a)-(f) matters requires gubernatorial recommendation and Assembly-only introduction. A Bill merely involving expenditure from the Consolidated Fund may originate in either House but cannot be passed without recommendation for consideration. Neither category is automatically a Money Bill; classification depends on content.

This architecture gives the confidence chamber control of supply while preserving discussion and audit. A Council may discuss the budget but cannot vote demands or bind the Assembly on a Money Bill. Assembly primacy, however, is not executive licence: meaningful control still requires adequate debate, committee examination, CAG-linked Public Accounts Committee follow-up and transparent supplementary demands. Constitutional power becomes accountability only through effective House practice.

Original Q5 - 20 marks, answer in not more than 250 words

Evaluate the institutional causes of weak State legislative scrutiny and propose targeted reforms.

Model answer (217 words): State legislatures possess substantial formal powers over law, confidence and finance, but institutional conditions often reduce scrutiny. Article 174 sets only a maximum inter-session gap, not a minimum annual sitting calendar. Governments can therefore compress business into short sessions. Rushed passage narrows amendment and opposition opportunity; weak research support increases member dependence on departments; discretionary committee referral limits evidence-based review; and delayed replies weaken questions and assurances. Ordinance reliance under Article 213 may further shift initiative to the executive, although *D. C. Wadhwa* and *Krishna Kumar Singh* reject routine repromulgation.

Presiding-officer incentives compound the problem. Control over admissibility, debate, Money Bill certification and defection timing affects government survival. *Kihoto Hollohan*, *Keisham Meghachandra* and *Subhash Desai* preserve review, timeliness and political-party authority, but litigation is a late safeguard. Councils can provide a second look, yet Articles 197-199 leave them unable to defeat Assembly preference.

Reform should target mechanisms: an evidence-based minimum sitting calendar; protected Question Hour and opposition time; publication and pre-legislative consultation; default committee referral with reasoned exceptions; professional non-partisan research and drafting services; time-bound executive responses to committee reports; transparent, reasoned rulings; and reconsideration of the Speaker's defection jurisdiction. Uniform national copying should be avoided because State rules and capacities differ. Stronger process, not merely more institutions, converts

Assembly primacy into accountable representative government.

Original Q6 - 20 marks, answer in not more than 250 words

Compare Parliament and a bicameral State legislature, focusing on second-chamber power, deadlock, lapse and ordinance control.

Model answer (221 words): Parliament and a bicameral State legislature share responsible-government logic but allocate second-chamber power differently. At the Union, the Rajya Sabha represents States, is broadly co-equal on ordinary and constitutional-amendment Bills and has special powers under Articles 249 and 312. A Legislative Council has mixed local, occupational, MLA-elected and nominated membership under Article 171 and no equivalent federal role.

For an ordinary State Bill, Article 197 allows a Council delay of three months and, after Assembly repassage, one month. The Assembly's second-passage text then prevails. Unlike Article 108 at the Union, there is no State joint sitting. A Council-originated Bill rejected by the Assembly ends. Under Article 196, prorogation does not lapse Bills; a Bill pending in the Assembly, or passed by it and pending in the Council, lapses on dissolution, while a Council-only pending Bill does not.

Financial asymmetry is sharper. Articles 198-199 give the Council only a fourteen-day recommendatory role on Money Bills, while Article 203 reserves grant voting to the Assembly. The ministry is responsible only to the Assembly.

Article 213 mirrors the temporary-law principle of Article 123 but operates within State competence and its specific recess condition. Mandatory laying and six-week expiry after later reassembly, reinforced by *D. C. Wadhwa* and *Krishna Kumar Singh*, prevent ordinance government. Thus parliamentary comparison is useful only after each constitutional mechanism is separately decoded.